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April 15, 2025

ENGROSSED HOUSE
BILL NO. 1833

By: Hefner, Miller, Provenzano,
and Deck of the House

and

Kirt of the Senate

An Act relating to labor; creating the Rethinking Paying Subminimal Wage to Persons with Disabilities Task Force; providing the purpose for the Task Force; providing for membership; providing rules for reporting; setting an end date; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 365 of Title 40, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created until November 1, 2027, the Rethinking Paying Subminimal Wage to Persons with Disabilities Task Force.

B. The Task Force shall study and develop a plan to phase out the practice of paying workers with disabilities subminimum wages under 14(c) certificate programs in Oklahoma. The Task Force shall study, review, and make recommendations on the following, with a

1 focus on transitioning workers with disabilities currently being
2 paid subminimum wages under 14(c) certificates to competitive,
3 integrated employment at or above minimum wage, and when
4 appropriate, alternative meaningful day programs for those not able
5 or wanting to move to competitive, integrated employment:

6 1. Identify potential obstacles and negative impacts of phasing
7 out subminimum wages and 14(c) use in Oklahoma; and

8 2. Develop a plan for phasing out subminimum wages and 14(c)
9 use in Oklahoma that:

10 a. reduces potential negative impacts and maximizes the
11 potential for successful transition to competitive,
12 integrated employment,

13 b. includes alternative meaningful day programs for those
14 individuals who do not wish to transition to
15 competitive, integrated employment or for those for
16 whom it is not appropriate, and

17 c. establishes an appropriate timeline for phasing out
18 subminimum wages.

19 C. The Task Force shall consist of eleven (11) members as
20 follows:

21 1. The Secretary of Commerce and Workforce Development;

22 2. A member of the Oklahoma House of Representatives, appointed
23 by the Speaker of the House;

- 1 3. A member of the Oklahoma State Senate, appointed by the
2 President Pro Tempore;
- 3 4. A representative from the Oklahoma Disability Law Center,
4 appointed by the President Pro Tempore of the Oklahoma State Senate;
- 5 5. A representative from the Oklahoma state chapter of the
6 Association of People Supporting Employment First, appointed by the
7 Speaker of the House;
- 8 6. A self-advocate who is currently enrolled or previously
9 employed at subminimum wage, appointed by the Board of the Oklahoma
10 Developmental Disabilities Council;
- 11 7. A parent or family member of a person with a disability who
12 has successfully transitioned from subminimum wage to competitive,
13 integrated employment, appointed by the Board of the Oklahoma
14 Developmental Disabilities Council;
- 15 8. A director of a program who previously held a 14(c)
16 certificate and successfully transitioned to community integrated
17 employment, appointed by the Governor;
- 18 9. A private employer who employs individuals with
19 disabilities, appointed by the Governor;
- 20 10. The Director of the Department of Human Services
21 Developmental Disabilities Services or his or her designee; and
- 22 11. The Director of the Oklahoma Department of Rehabilitation
23 Services or his or her designee.
24

1 D. The member of the Oklahoma House of Representatives and the
2 member of the Oklahoma State Senate shall serve as co-chairs of the
3 Task Force. Appointments to the Task Force shall be made within
4 thirty (30) days after the effective date of this act. Meetings of
5 the Task Force shall be held at the call of either co-chair of the
6 Task Force. Members shall serve at the pleasure of their appointing
7 authorities. A majority of the members of the Task Force shall
8 constitute a quorum to transact business, but no vacancy shall
9 impair the right of the remaining members to exercise all of the
10 powers of the Task Force. Except as otherwise provided, a vacancy
11 on the Task Force shall be filled by the original appointing
12 authority. If the original appointing authority fails to make an
13 appointment within thirty (30) days after the effective date of this
14 act, a majority of the members of the Task Force who have been
15 appointed may fill the vacancy to the open position. Staff support
16 for the Task Force shall be provided by the staff of the Oklahoma
17 House of Representatives and the Oklahoma State Senate. The
18 Oklahoma Department of Career and Technology Education, Oklahoma
19 State Regents for Higher Education, Office of Disability Concerns,
20 Oklahoma Department of Rehabilitation Services, Oklahoma Health Care
21 Authority, Department of Human Services, and the State Use Committee
22 of the Office of Management and Enterprise Services shall provide
23 support and information as requested by the Task Force.

1 E. Members of the Task Force shall receive no compensation for
2 serving on the Task Force, but may receive travel reimbursement,
3 contingent on the availability of private funds for this purpose.

4 F. The Task Force may seek the assistance of the Legislative
5 Service Bureau or the State Board of Education to contract with an
6 independent consultant as necessary to fulfill the duties specified
7 in this section, contingent on the availability of funds.

8 G. The Task Force shall submit a final report by January 1,
9 2028, to the Governor, the President Pro Tempore of the Oklahoma
10 State Senate, and the Speaker of the Oklahoma House of
11 Representatives.

12 SECTION 2. This act shall become effective November 1, 2025.

13 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
14 AND TOURISM
15 April 15, 2025 - DO PASS
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